

HOUSE No. 3368

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a special commission to investigate and study the feasibility of establishing a municipal building financing authority.

PETITION OF:

NAME:

Patrick Joseph Kearney

DISTRICT/ADDRESS:

4th Plymouth

DATE ADDED:

1/7/2025

HOUSE No. 3368

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 3368) of Patrick Joseph Kearney for legislation to provide for an investigation by a special commission (including members of the General Court) relative to establishing a municipal building finance authority. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3067 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a special commission to investigate and study the feasibility of establishing a municipal building financing authority.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There is hereby established a special commission to investigate and study
2 the feasibility of establishing a municipal building finance authority.

3 SECTION 2. The commission shall: (1) consider recommendations from state and federal
4 reports, relative to the establishment of a municipal building finance authority; (2) identify and
5 consider state and private funding sources with consideration for providing grants and loans to
6 cities and towns for the planning, design, and construction of municipal buildings; (3) assess
7 innovative financing approaches for assisting municipalities in the planning and construction of
8 municipal buildings including, but not limited to, councils-on-aging facilities, public safety
9 facilities, town halls, and other municipal buildings or facilities; and (4) determine specific

10 powers of a municipal building finance authority including but not limited to (a) establishing
11 grant programs, (b) providing architectural or other technical advice and assistance to
12 municipalities, general contractors, subcontractors, construction or project managers, designers
13 and others in the planning, maintenance and establishment of municipal facilities; (c) perform or
14 commission a needs survey to ascertain the capital construction, reconstruction, maintenance and
15 other capital needs for municipal facilities in the commonwealth, and (d) recommend to the
16 general court legislation as necessary to further the purposes of establishing a municipal building
17 finance authority.

18 SECTION 2. The municipal building finance commission shall be comprised of the
19 following 13 members: 2 members of the senate appointed by the senate president; 2 members of
20 the house of representatives appointed by the speaker of the house; 1 member of the senate and 1
21 member of the house of representatives appointed by the minority leader of each; the state
22 treasurer or a designee, the secretary of administration and finance or a designee, the secretary of
23 public safety and security or a designee, the secretary of elder affairs or a designee; the secretary
24 of housing and economic development or a designee; the executive director of the school
25 building authority or a designee and a representative of the Massachusetts Municipal
26 Association.

27 The members of the commission shall be appointed not later than 90 days after the
28 effective date of this act and shall serve until the completion of the report.

29 SECTION 3. The commission shall report to the general court the results of its study
30 together with recommendations and drafts of legislation by filing the same with the clerks of the
31 senate and the house of representatives on or before December 31, 2023.